

		But at the agreed upon deposition set for July 22--well after the compliance date set in Judge De La Cruz's order--Plaintiff still did not appear. Counsel explains "[o]ur records reflect that counsel attempted to call Plaintiff [and] left a voicemail" The attempts to contact Plaintiff at the deposition were mentioned in the nonappearance transcript on July 22, where defense counsel noted: "Off the record plaintiff's counsel advised she had attempted to contact plaintiff on at least two different numbers but was unable to reach him." RT 4:22-25. Although older persons might have difficulty with Zoom, telephones have been around for 150 years and despite technological changes in dialing numbers, they are simple to operate. That Plaintiff did not call his counsel to report a difficulty connecting to Zoom on July 22 or even answer his counsel's calls suggests something more sinister is afoot. Indeed, Plaintiff's counsel declares: "Despite repeated communications, warnings, scheduling efforts, and the proposed technological assistance, Plaintiff has persistently been unable to appear for and complete his deposition. [¶] "The repeated inability to communicate effectively with Plaintiff, coordinate his participation, and ensure compliance with his discovery obligations has caused an irreparable breakdown in the attorney-client relationship. [¶] Because of that irreparable breakdown in the attorney-client relationship, Plaintiff's counsel anticipates filing a motion to be relieved as counsel." Wong Decl. at ¶¶16, 17, 18. In other words, Plaintiff's counsel has given up trying to get his client to appear for deposition. The Court also gives up and will not continue the motion for compliance. Action is DISMISSED with prejudice. The court also issues additional monetary sanctions against Plaintiff in the sum of \$1,500 to be paid within 14 days of written notice of the ruling. Defendant is ordered to give notice of the ruling and submit a proposed judgment with proof of service within 15 days..
4	Alofs vs. Volkswagen A.G.	Defendant Volkswagen A.G.'s ("Defendant") Motion to Quash Service of Summons ("Motion") is GRANTED. Defendant argues it is a foreign corporation with no contacts within California or the United States. California courts may exercise jurisdiction over nonresidents "on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) The statute "manifests an intent to exercise the broadest possible jurisdiction, limited only by constitutional considerations." [Citation.] (<i>DVI, Inc. v. Superior Ct.</i> (2002) 104 Cal. App. 4th 1080, 1089 ("<i>DVI</i>").) "The federal Constitution permits a state to exercise jurisdiction over a

nonresident defendant if the defendant has sufficient "minimum contacts" with the forum such that "maintenance of the suit does not offend 'traditional notions of fair play and substantial justice.' [Citations.]" [Citation.] "The 'substantial connection,' [citations] between the defendant and the forum State necessary for a finding of minimum contacts must come about by an action of the defendant purposefully directed toward the forum State. [Citations.]" [Citation.]" (*Id.*, at 1089-90.)

"Personal jurisdiction may be either general or specific. [Citation.] A nonresident defendant is subject to the forum's general jurisdiction where the defendant's contacts are " 'substantial ... continuous and systematic.' " [Citations.] In that situation, the cause of action need not be related to the defendant's contacts. [Citations.] "Such a defendant's contacts with the forum are so wide-ranging that they take the place of physical presence in the forum as a basis for jurisdiction." [Citation.]" (*DVI, supra*, 104 Cal. App. 4th at 1090.) "If the nonresident defendant does not have substantial and systematic contacts with the forum state, the defendant may be subject to specific jurisdiction if (1) " 'the defendant has purposefully availed [itself] of forum benefits' " with respect to the matter in controversy, (2) " 'the "controversy is related to or 'arises out of' [the] defendant's contacts with the forum," ' " and (3) the exercise of jurisdiction would comport with fair play and substantial justice." (*Ibid.*; *Pavlovich v. Superior Ct.* (2002) 29 Cal. 4th 262, 269.)

The court must perform analysis of whether general jurisdiction and/or specific jurisdiction applies, and in the instance of personal jurisdiction, if assertion of personal jurisdiction would comport with the interests of fair play and substantial justice. (*L.W. v. Audi AG*, 108 Cal. App. 5th 95, 117-18 ("*Audi*").) In the present matter, Plaintiff made no arguments regarding general jurisdiction, which leaves only personal jurisdiction and the related issues of fair play and substantial justice in contest.

The *Audi* case is informative and controlling and involves the same vehicle manufacturing and sales/warranty structure that are present in this case.

"[S]pecific jurisdiction "covers defendants less intimately connected with a State, but only as to a narrower class of claims. The contacts needed for this kind of jurisdiction often go by the name 'purposeful availment.' [Citation.] The defendant ... must take 'some act by which [it] purposefully avails itself of the privilege of conducting activities within the forum State.' " " " (*L.W. v. Audi AG*, 108 Cal. App. 5th 95, 107 ("*Audi*").) "When determining whether specific jurisdiction exists, courts consider the " 'relationship among the defendant, the forum, and the litigation.' " [Citation.] A court may exercise specific jurisdiction over a nonresident defendant only if: (1) 'the defendant has purposefully availed himself or herself of forum benefits' [citation]; (2) 'the "controversy is related to or